SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, AND 30.

1. REQUISITION NUMBER	PAGE 1 OF 18

2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER	6. SOLICITATION ISSUE DATE
			140PP027Q0019	10/30/2026

7. FOR SOLICITATION INFORMATION CALL:	a. NAME	b. TELEPHONE NUMBER *(No collect calls)*	8. OFFER DUE DATE/ LOCAL TIME
	Cole Johnson	2673210342	12/03/2026 1200 MS

9. ISSUED BY	CODE	10. THIS ACQUISITION IS			
NPS ConOps Central 3 1 Denver Federal Center, Building 85 P.O. Box 25287 Denver CO 80225-0287	PC3	☐ UNRESTRICTED OR ☒ SET ASIDE: 100.00 % FOR: ☒ SMALL BUSINESS ☐ HUBZONE SMALL BUSINESS ☐ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS (SDVOSB) ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ☐ ECONOMICALLY DISADVANTAGED WOMEN-OWNED SMALL BUSINESS (EDWOSB) ☐ 8(A)		NORTH AMERICAN INDUSTRY CLASSIFICATION STANDARD (NAICS): 562991 SIZE STANDARD: $9	

11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED	12. DISCOUNT TERMS	13a. THIS CONTRACT IS A RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM - DPAS (15 CFR 700)	13b. RATING	14. METHOD OF SOLICITATION
☒ SEE SCHEDULE		☐		☒ REQUEST FOR QUOTE (RFQ) ☐ INVITATION FOR BID (IFB) ☐ REQUEST FOR PROPOSAL (RFP)

15. DELIVER TO	CODE	16. ADMINISTERED BY	CODE
See Schedule		See Schedule	PC3

17a. CONTRACTOR/ OFFEROR	CODE	FACILITY CODE	18a. PAYMENT WILL BE MADE BY	CODE
TELEPHONE NUMBER				

☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER

18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	ADMINISTERED BY: NPS ConOps Central 3 1 Denver Federal Center, Building 85 P.O. Box 25287 Denver CO 80225-0287 USA This is a combined synopsis/solicitation issued Continued... *(Use Reverse and/or Attach Additional Sheets as Necessary)*				

25. ACCOUNTING AND APPROPRIATION DATA

26. TOTAL AWARD AMOUNT *(For Government Use Only)*

☒ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA ☒ ARE ☐ ARE NOT ATTACHED

☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA ☐ ARE ☐ ARE NOT ATTACHED

☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN 1 COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED

☐ 29. AWARD OF CONTRACT: REFERENCE _____ OFFER DATED _____. YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:

30a. SIGNATURE OF OFFEROR/CONTRACTOR	31a. UNITED STATES OF AMERICA *(SIGNATURE OF CONTRACTING OFFICER)*

30b. NAME AND TITLE OF SIGNER *(Type or print)*	30c. DATE SIGNED	31b. NAME OF CONTRACTING OFFICER *(Type or print)*	31c. DATE SIGNED
		Cole Johnson	

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	in accordance with FAR Part 12 procedures for Commercial Services. The NPS is seeking quotes for Portable Toilet Services to include delivery, maintenance, and replacement of portable toilets at ZION National Park from the period 1/1/2027 to 12/31/2027 with four (4) 1-year option periods. To submit a quote, please see the Instructions to Offerors below. Attachments: 1. Statement of Work 2. Applicable Wage Determinations 3. Q&A Document 4. Monthly Price Schedule 5. Limitations on Subcontracting WS Please submit all quotes to Cole Johnson, Contracting Officer, at Cole_Johnson@ios.doi.gov by the due date/time specified in the SAM.Gov announcement. Period of Performance: 01/01/2027 to 12/31/2031				
00010	BASE Period: Portable Toilet Services Product/Service Code: W085 Product/Service Description: LEASE OR RENTAL Continued...				

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE 32g. EMAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER ☐ PARTIAL ☐ FINAL	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT ☐ COMPLETE ☐ PARTIAL ☐ FINAL	37. CHECK NUMBER

STOCK RECORD (S/R)		40. PAID BY
38. S/R ACCOUNT NUMBER	39. S/R VOUCHER NUMBER	

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT		42a. RECEIVED BY *(Print)*	
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER	41c. DATE	42b. RECEIVED AT *(Location)* 42c. DATE RECEIVED *(MM/DD/YYYY)*	42d. TOTAL CONTAINERS

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	OF EQUIPMENT- TOILETRIES Delivery: 12/31/2027 Period of Performance: 01/01/2027 to 12/31/2027				
00020	OPTION Period 1 (2028): Portable Toilet Services (Option Line Item) Anticipated Exercise Date 11/30/2027 Product/Service Code: W085 Product/Service Description: LEASE OR RENTAL OF EQUIPMENT- TOILETRIES Delivery: 12/31/2028 Period of Performance: 01/01/2028 to 12/31/2028				
00030	OPTION Period 2 (2029): Portable Toilet Services (Option Line Item) Anticipated Exercise Date 11/30/2028 Product/Service Code: W085 Product/Service Description: LEASE OR RENTAL OF EQUIPMENT- TOILETRIES Delivery: 12/31/2029 Period of Performance: 01/01/2029 to 12/31/2029				
00040	OPTION Period 3 (2030): Portable Toilet Services (Option Line Item) Anticipated Exercise Date 11/30/2029 Product/Service Code: W085 Product/Service Description: LEASE OR RENTAL OF EQUIPMENT- TOILETRIES Delivery: 12/31/2030 Period of Performance: 01/01/2030 to 12/31/2030				
00050	OPTION Period 4 (2031): Portable Toilet Services				

Continued...

ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	(Option Line Item) Anticipated Exercise Date 11/30/2030 Product/Service Code: W085 Product/Service Description: LEASE OR RENTAL OF EQUIPMENT- TOILETRIES Delivery: 12/31/2031 Period of Performance: 01/01/2031 to 12/31/2031				

I. DESCRIPTION

THIS IS A REQUEST FOR QUOTE. This is a combined synopsis/solicitation for commercial services prepared in accordance with FAR Part 12. This announcement constitutes the only solicitation. Offers are being requested and a separate written solicitation will not be issued.

Solicitation number **140PP027Q0019** is issued as a request for quote (RFQ) for Portable Toilet Services at ZION National Park.

This solicitation incorporates provisions and clauses by reference. The full text of provisions and clauses may be accessed electronically at www.acquisition.gov.

This requirement is a 100% Total Small Business Set-Aside. The associated NAICS code is **562991**. The small business size standard is **$7.5 M**. Provisions and clauses are incorporated in this solicitation document.

To be considered for award your company must obtain a Unique Entity Identifier (UEI). Your company must also be registered in the System for Award Management (SAM) and be considered a small business for the size standard associated with the NAICS code found in block 10 on page one (1) of this solicitation, and this registration must be "active" in SAM at the time of quote/proposal close date/time - as well as, at the time of award and throughout the entire award/contract performance.

Website: https://www.sam.gov

If you have any registration questions or if you need assistance with registration or updating SAM, please contact the National APEX Accelerator nearest you.

Website: Home - National Apex Accelerator Alliance // APEX Accelerators

GENERAL INFORMATION:

This solicitation is a Request for Quote (RFQ) Solicitation issued on Standard Form (SF) 1449. Award of this contract will be made according to FAR Part 12 Acquisition of Commercial Products and Commercial Services. All references to "proposal" in this solicitation shall be understood to mean "quotation." Quotations shall be evaluated in an impartial manner using a Lowest Price, Technically Acceptable (LPTA) selection method.

Contract Type

The contract awarded as a result of this solicitation will be a firm-fixed price commercial contract/award.

COMPLIANCE WITH RECENT EXECUTIVE ORDERS 14148/14208

System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations, including 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals—Representation, and paragraph (t) of 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services. Agencies will not consider or use these representations. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

Subject to Availability of Funds Addendum:

Notice to Offeror(s)/Supplier(s): Funds are not presently available for this effort, however there is a high expectation that funds will become available to make an award resulting from this solicitation. No award will be made under this solicitation until funds are available. The Government reserves the right to cancel this solicitation, either before or after the closing date. In the event the Government cancels this solicitation, the Government has no obligation to reimburse an offeror for any costs.

The following Federal Acquisition Regulation (FAR) provisions and clauses shall be applicable to this solicitation and award: For full text version of these provisions and clauses, please go to the following internet address: www.acquisition.gov

II. SUBMISSION REQUIREMENTS

Closing Response Date/Time:	Quotes are due by 3 December 2026 @ 12PM MT
Contact Point or Contracting Officer:	Cole Johnson - email – Cole_Johnson@ios.doi.gov
Questions regarding this solicitation:	Questions must be submitted in writing using the attached Q&A document. Due NLT 11 November 2026 by COB.
Submission Requirements / How to Submit an Offer:	Offers to be submitted via email Please see Instructions to Offerors section below for submission requirement details.

-CONTINUED-

III. LIST OF LINE-ITEMS

ITEM NUMBER	ITEM	QUANTITY	UNIT OF MEASURE
0010	Portal Toilet Services (12 Months)	1	Lump Sum
0020	OPTION Portable Toilet Services (12 Months)	1	Lump Sum
0030	OPTION Portable Toilet Services (12 Months)	1	Lump Sum
0040	OPTION Portable Toilet Services (12 Months)	1	Lump Sum
0050	OPTION Portable Toilet Services (12 Months)	1	Lump Sum

(Please include Total Pricing on the 1449 Schedule & Breakdown Pricing on the Monthly Schedule Attachment).

IV. DESCRIPTION OF REQUIREMENT(S)

Independently, and not as an agent of the Government, the contractor/vendor shall furnish all labor, materials, and equipment necessary to provide portable toilet service at ZION.

Please see attached Statement of Work.

V. DELIVERY INFORMATION/TERMS / PERIOD OF PERFORMANCE

Please see attached Statement of Work details outlining the work contemplated along with the Period of Performance. The Government anticipates a Pop inclusive of a Base Year and Four (4) 1-Year Option Periods. Work is to commence 1 January 2027 through 31 December 2027 and continue in 1-year optional increments until all Options have been exercised or the government determines to not exercise an Option.

VI. LIST OF PROVISIONS (BY REFERENCE)

52.252-1 Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its

quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): www.acquisition.gov

(End of provision)

52.252-5 Authorized Deviations in Provisions (Nov 2020)

As prescribed in 52.107(e), insert the following provision in solicitations that include any FAR or supplemental provision with an authorized deviation. Whenever any FAR or supplemental provision is used with an authorized deviation, the contracting officer shall identify it by the same number, title, and date assigned to the provision when it is used without deviation, include regulation name for any supplemental provision, except that the contracting officer shall insert "(DEVIATION)" after the date of the provision.

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.
(b) The use in this solicitation of any _____ *[insert regulation name]*(48 CFR Chapter_____) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

52.203-11 Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions (Sep 2024)
52.203-18 Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation (Jan 2017)
52.204-7 System for Award Management - Registration (Nov 2024) (DEVIATION Mar 2026)
52.209-2 Prohibition on Contracting with Inverted Domestic Corporations – Representation (Nov 2015)
52.209-7 Information Regarding Responsibility Matters (Oct 2018) DEVIATION DATE
52.212-1 Instructions to Offerors - Commercial Products and Commercial Services (Sep 2023) (DEVIATION Mar 2026)
52.225-20 Prohibition on Conducting Restricted Business Operations in Sudan-Certification (Aug 2009) DEVIATION DATE
52.225-25 Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications (Jun 2020) DEVIATION DATE
52.240-90 Security Prohibitions and Exclusions Representations and Certifications (Dec 2025) (DEVIATION Mar 2026)

VII. LIST OF CLAUSES (BY REFERENCE)

52.252-2 Clauses Incorporated by Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address (es): www.acquisition.gov

(End of clause)

52.252-6 Authorized Deviations in Clauses (Nov 2020)

As prescribed in 52.107(f), insert the following clause in solicitations and contracts that include any FAR or supplemental clause with an authorized deviation. Whenever any FAR or supplemental clause is used with an authorized deviation, the contracting officer shall identify it by the same number, title, and date assigned to the clause when it is used without deviation, include regulation name for any supplemental clause, except that the contracting officer shall insert "(DEVIATION)" after the date of the clause.

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.
(b) The use in this solicitation or contract of any _____ *[insert regulation name]* (48 CFR _____) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

52.203-6 Restrictions on Subcontractor Sales to the Government (Jun 2020)
52.203-6 Restrictions on Subcontractor Sales to the Government ALT 1 (Nov 2021)
52.203-12 Limitation on Payments to Influence Certain Federal Transactions (Jun 2020)
52.203-17 Contractor Employee Whistleblower Rights (Nov 2023)
52.203-19 Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017)
52.204-13 System for Award Management Maintenance (Oct 2018) (DEVIATION Mar 2026)
52.204-19 Incorporation by Reference of Representations and Certifications (Dec 2014)
52.209-6 Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded (Jan 2025) DEVIATION DATE
52.209-10 Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015)
52.212-4 Terms and Conditions—Commercial Products and Commercial Services (Nov 2023) (DEVIATION Mar 2026)
52.219-6 Notice of Total Small Business Set-Aside (Mar 2020) (DEVIATION Jan 2026)
52.219-8 Utilization of Small Business Concerns (Jan 2025) (DEVIATION Jan 2026)
52.219-14 Limitations on Subcontracting (Oct 2022) (DEVIATION Jan 2026)
52.222-3 Convict Labor (Jun 2003) DEVIATION DATE
52.222-35 Equal Opportunity for Veterans (Jun 2020) DEVIATION DATE
52.222-36 Equal Opportunity for Workers with Disabilities (Jun 2020) DEVIATION DATE
52.222-37 Employment Reports on Veterans (Jun 2020) DEVIATION DATE
52.222-40 Notification of Employee Rights Under the National Labor Relations Act (Dec 2010) DEVIATION DATE
52.222-41 Service Contract Labor Standard (Aug 2018) DEVIATION DATE
52.222-42 Statement of Equivalent Rates for Federal Hires (May 2014)
52.222-43 Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (Aug 2018) DEVIATION DATE
52.222-44 Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014) DEVIATION DATE
52.222-50 Combating Trafficking in Persons (Oct 2025) DEVIATION DATE
52.222-62 Paid Sick Leave Under Executive Order 13706 (Jan 2022) DEVIATION DATE

52.222-90 Addressing DEI Discrimination by Federal Contractors (Mar 2026) DEVIATION DATE
52.223-5 Pollution Prevention and Right-to-Know Information (May 2024)
52.226-7 Drug-Free Workplace (May 2024)
52.226-8 Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024)
52.228-5 Insurance -- Work on a Government Installation (Jan 1997)
52.232-18 Availability of Funds (Apr 1984)
52.232-33 Payment by Electronic Funds Transfer-System for Award Management (Oct 2018)
52.232-40 Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)
52.232-90 Fast Payment Procedure (Dec 2025) DEVIATION DATE
52.233-3 Protest after Award (Aug 1996) DEVIATION DATE
52.233-4 Applicable Law for Breach of Contract Claim (Oct 2004) DEVIATION DATE
52.237-2 Protection of Government Buildings, Equipment, and Vegetation (Apr 1984)
52.240-91 Security Prohibitions and Exclusions (Dec 2025) (DEVIATION Mar 2026)
52.240-93 Basic Safeguarding of Covered Contractor Information Systems (Dec 2025) (DEVIATION Mar 2026)
52.249-1 Termination for Convenience of the Government (Fixed-Price) (Short Form) (Apr 1984)
52.249-4 Termination for Convenience of the Government (Services) (Short Form) (Apr 1984)
52.253-1 Computer Generated Forms (Jan 1991)

VIII. PROVISIONS AND CLAUSES INCORPORATED BY FULL TEXT

52.209-7 Information Regarding Responsibility Matters (Oct 2018) DEVIATION DATE

(a) Definitions. As used in this provision—

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than $10,000,000 means—

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror □ has □ does not have current active Federal contracts and grants with total value greater than $10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of $5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in–

(A) The payment of a monetary fine or penalty of $5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of $100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via https://www.sam.gov (see 52.204-7).

(End of provision)

52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (Feb 2016) DEVIATION DATE

(a) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L 113-235), and similar provisions, if contained in subsequent appropriations acts, the Government will not enter into a contract with any corporation that--

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that—

(1) It is [ ] is not [ ] a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is [ ] is not [ ] a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

ADDENDUM TO 52.212-1 INSTRUCTIONS TO OFFERORS - COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (Sep 2023) (DEVIATION Mar 2026)

Quotes must be in accordance with and in the order detailed in this section. Failure to submit quotes according to the instructions provided within the solicitation may result in the respondent's quote not being considered for award.

All interested parties shall be registered in the System for Award Management or SAM at time an offer or quotation is submitted.

The offerors shall submit a quote to the contract specialist by email to: **Cole_Johnson@ios.doi.gov** **by the due date/time prescribed on the SAM.Gov announcement. Note: Please keep a lookout for Solicitation Amendments on Sam.Gov which may revise this due date.**

Offers shall submit the following information in its entirety:

a) CHECKLIST FOR QUOTE SUBMITTAL:

Document to Complete in Quote Package	Check Box
Checklist for Quote Submittal – the checklist is this page of the solicitation completed as the first page in the package	☐
Signed acknowledgement of SF1449	☐
Signed amendments if applicable	☐
Price Schedule – complete the attached price schedule on the 1449 itself.	☐
Completed Provisions in this solicitation as applicable	☐
Submit Technical Factor 1 – Draft Schedule	☐
Submit Technical Factor 2 – Product Data	☐
Submit Technical Factor 3 – Operations Plan	☐

b) Contractor Core Data:

Offerors Company Name:_____

Cage Code / Offerors Unique Entity Identifier (UEI):_____

Offerors POC:_____

Offerors POC Email/Phone:_____

TO SUBMIT AN OFFER

1. **Checklist for quote submittal listed above as the first page in the quote submittal package.**
2. **Completed and signed SF1449.**

   NOTE: Please check SAM.gov regularly in any case an amendment was posted, as this amendment must be reviewed, acknowledged by signing the SF30 and ensuring that it is provided with your final quote/proposal package.

3. **Completed 1449 Price Schedule. Insert total unit price and/or amount, in reference to ALL line items listed. Must ensure that this document is not edited for any reason (outside of adding units of measure, quantities, etc…) and the unedited Price Schedule is provided with final pricing – if needing to make edits or alter the document, provide an addendum outlining these changes or additional information wanting to make apparent to the evaluators.**

   NOTE: Alternate quotes/proposals will not be accepted. Provide us with the final offer total, as this will be the evaluated price, inclusive of Options.

4. **Completed "Monthly Price Schedule" attachment. Include the price for each unit on a monthly basis using the attached schedule. Include pricing for the base year and all option years. The resulting contract will be lump sum, FFP, however this schedule will be used for a more detailed analysis of prices proposed.**

5. **Completed Provisions in this solicitation as applicable.**

6. **Submit a Technical Volume comprising of all Technical Factors stated under this solicitation, for Technical Evaluation.**

7. **Submit all required documents via email by the date and time listed in this solicitation.** Offerors are responsible for submitting quotes/proposals so as to reach the Government office designated in the solicitation by the time specified in the solicitation. Offerors should consider and account for potential delays in transmissions between when an electronic submission is submitted and when an electronic submission is received. Late quotes/proposals will not be accepted unless determined by the CO to be in the best interest of the NPS.

8. **Registration Requirements:** Your company must be registered as a small business, prior to award and throughout the entire award/contract performance - in System for Award Management (SAM) and be considered a small business for the size standard associated with the NAICS code found in block 10 on page one (1) of this solicitation. This registration must be "active" in SAM. NO EXCEPTIONS. The direct SAM website for registration is: https://www.sam.gov.

52.212-2 Evaluation — Commercial Products and Commercial Services (Nov 2021) (DEVIATION Mar 2026)

(a) Evaluation factors: **Price & Technical.**

SEE AWARD SELECTION PROCESS section below

(b) *Options*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s). The Total Evaluated Price equals the total of CLIN's 0010 through 0050 when added together.

(c) *Notice of award*. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

AWARD SELECTION PROCESS

Basis of Award: Award will be made to the Offeror whose offer conforms to the solicitation requirements and provides the best value to the Government: Lowest Price Technically Acceptable in accordance with the items contained in this solicitation and the process described in FAR PART 12.

1. **Price:** A price evaluation will be performed to determine the reasonableness of the proposed price. Reasonableness will be determined considering other competitive prices received and comparison to the independent Government estimate. If multiple contract line items are included in the price schedule, prices will also be evaluated to determine whether any line items are unbalanced. Offerors are cautioned to distribute costs appropriately.

   Quotes will receive a preliminary review to determine whether the quote contains sufficient information, as required by the solicitation, to allow the government to perform a meaningful evaluation. If the results of this preliminary review indicate that the quote lacks sufficient information to allow a meaningful evaluation to be conducted, the Contract Specialist/Contracting Officer may eliminate the quote from further evaluation and consideration for an award.

   Quotes will be "racked and stacked" in order of lowest to highest Total Evaluated Price. The Total Evaluated Price is a combination of the Base CLIN and all Option CLINS. Technical reviews will be conducted on the lowest three (3) quotes until a Lowest Price, Technically Acceptable awardee is identified, at which point, evaluations will stop; award will be made to the LPTA identified.

2. **Technical:** The government will evaluate the following Technical Factors on a pass/fail basis. Each Factor will be evaluated by the government and either evaluated as "Technically Acceptable" or "Not Technically Acceptable." To receive an award, all three (3) of the following Technical Factors must be determined as "Technically Acceptable." Evaluations will take place on the three (3) lowest priced quotes and will continue in groups of three (3) until an LPTA is identified:

   Technical Factor 1 – Draft Schedule: Contractors are instructed to submit a draft schedule, with delivery starting 1 January 2027, commensurate with the requirements for different toilet deliveries/maintenance established in the Statement of Work.

   To be considered Technically Acceptable: The Schedule clearly show relevant dates/milestones for delivery and closely matches the Statement of Work's requirements for the Base Period and subsequent Option Periods.

   Technical Factor 2 – Product Data: Contractors are instructed to submit the product, manufacturer, and part number (if available) demonstrating the portable toilet types to be used.

   To be considered Technically Acceptable: The quote clearly demonstrates the product, manufacture, and part number (if available) whereby the government can ascertain the type of portable toilets being delivered. The government reserves the right to mark this Factor "Not Technically Acceptable" if the product submitted does not meet the requirements stated in the Statement of Work.

   Technical Factor 3 – Operations Plan: Contractors are instructed to devise an Operations Plan the contractor will follow for the duration of the contract. The Plan shall include:

   i. Contingency plans detailing how the contractor will provide additional toilets, if requested by the NPS, and how much time such deliveries will likely take. Include any required notice times, prep times, and delivery estimates herein. (Note: Any additional toilet requirements outside the current scope must be negotiated and agreed upon by the Contracting Officer before becoming subject to the contract).

ii. Contingency plans detailing how quickly the contractor can re-locate established toilets, on site, at the needs of the NPS. Please include technical details of what such changes may require (from both contractor and government).
iii. Plans for maintenance. Include how often the toilets require maintenance.
iv. Plans for replacement. Include any plans for replacement of a portable toilet that has otherwise been damaged or is no longer in service. Be specific about how long it might take to get a new toilet in place and operational.

To be considered Technically Acceptable: The quote clearly demonstrates an Operations Plan commensurate with the requirements outlined in the Statement of Work. The Plan accounts for adding more toilets, moving existing toilets, maintenance requirements, and processes for toilet replacement (as needed).

52.217-5 Evaluation of Options (July 1990)

Except when it is determined in accordance with FAR 17.206(b) not to be in the Government's best interests, the Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. Evaluation of options will not obligate the Government to exercise the option(s).

(End of provision)

52.217-6 Option for Increased Quantity (Mar 1989)

The Government may increase the quantity of services called for in the Schedule at the unit price specified. The Contracting Officer may exercise the option by written notice to the Contractor within ***15 days*** *of the requirement*. Delivery of the added services shall continue at the same rate as the like items called for under the contract, unless the parties otherwise agree.

(End of clause)

52.217-8 Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within **30 days**.

(End of clause)

52.217-9 Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within **30 days**; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least **30 days** before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed **5 years**.

(End of clause)

Electronic Invoicing and Payment Requirements – Invoice Processing Platform (IPP) (Feb 2021)

Payment requests must be submitted electronically through the U. S. Department of the Treasury's Invoice Processing Platform System (IPP).

"Payment request" means any request for contract financing payment or invoice payment by the Contractor. To constitute a proper invoice, the payment request must comply with the requirements identified in the applicable Prompt Payment clause included in the contract, or the clause 52.212-4 Contract Terms and Conditions - Commercial Products and Commercial Services included in commercial item contracts. The IPP website address is: https://www.ipp.gov.

Under this contract, the following documents are required to be submitted as an attachment to the IPP invoice:

1. Copy of vendor invoice document in PDF format, which shows pricing breakdown for all items being invoiced for and must include the contract number, date(s) of service (if applicable), date of invoice, and the vendor's standard invoice letterhead.

The Contractor must use the IPP website to register access and use IPP for submitting requests for payment. The Contractor Government Business Point of Contact (as listed in SAM) will receive enrollment instructions via email from the Federal Reserve Bank of St. Louis (FRBSTL) within 3 - 5 business days of the contract award date. Contractor assistance with enrollment can be obtained by contacting the IPP Production Helpdesk via email IPPCustomerSupport@fiscal.treasury.gov or phone (866) 973-3131.

If the Contractor is unable to comply with the requirement to use IPP for submitting invoices for payment, the Contractor must submit a waiver request in writing to the Contracting Officer with its proposal or quotation.

(End of clause)

1452.201-70 Authorities and Delegations (Sep 2011)

(a) The Contracting Officer is the only individual authorized to enter into or terminate this contract, modify any term or condition of this contract, waive any requirement of this contract, or accept nonconforming work.

(b) The Contracting Officer will **designate a Contracting Officer's Representative (COR) at time of award.** The COR will be responsible for technical monitoring of the contractor's performance and deliveries. The COR will be appointed in writing, and a copy of the appointment will be furnished to the Contractor. Changes to this delegation will be made by written changes to the existing appointment or by issuance of a new appointment. The COR for this contract will be:

(c) The COR is not authorized to perform, formally or informally, any of the following actions:

(1) Promise, award, agree to award, or execute any contract, contract modification, or notice of intent that changes or may change this contract;

(2) Waive or agree to modification of the delivery schedule;

(3) Make any final decision on any contract matter subject to the Disputes Clause;

(4) Terminate, for any reason, the Contractor's right to proceed;

(5) Obligate in any way, the payment of money by the Government.

(d) The Contractor shall comply with the written or oral direction of the Contracting Officer or authorized representative(s) acting within the scope and authority of the appointment memorandum. The Contractor need not proceed with direction that it considers to have been issued without proper authority. The Contractor shall notify the Contracting Officer in writing, with as much detail as possible, when the COR has taken an action or has issued direction (written or oral) that the Contractor considers to exceed the COR¿s appointment, within 3 days of the occurrence. Unless otherwise provided in this contract, the Contractor assumes all costs, risks, liabilities, and consequences of performing any work it is directed to perform that falls within any of the categories defined in paragraph (c) prior to receipt of the Contracting Officer's response issued under paragraph (e) of this clause.

(e) The Contracting Officer shall respond in writing within 30 days to any notice made under paragraph (d) of this clause. A failure of the parties to agree upon the nature of a direction, or upon the contract action to be taken with respect thereto, shall be subject to the provisions of the Disputes clause of this contract.

(f) The Contractor shall provide copies of all correspondence to the Contracting Officer and the COR.

(g) Any action(s) taken by the Contractor, in response to any direction given by any person acting on behalf of the Government or any Government official other than the Contracting Officer or the COR acting within his or her appointment, shall be at the Contractor's risk.

(End of clause)

1452.228-70 Liability Insurance – Department of the Interior (Jul 1999)

(a) The Contractor shall procure and maintain during the term of this contract and any extension thereof liability insurance in form satisfactory to the Contracting Officer by an insurance company which is acceptable to the Contracting Officer. The named insured parties under the policy shall be the Contractor and the United States of America. The amounts of the insurance shall be not less than as follows:

$100,000.00 each person

$500,000.00 each occurrence

$500,000.00 property damage

(b) Each policy shall have a certificate evidencing the insurance coverage. The insurance company shall provide an endorsement to notify the Contracting Officer 30 days prior to the effective date of cancellation or termination of the policy or certificate; or modification of the policy or certificate which may adversely affect the interest of the Government in such insurance. The certificate shall identify the contract number, the name and address of the Contracting Officer, as well as the insured, the policy number and a brief description of contract services to be performed. The contractor shall furnish the Contracting Officer with a copy of an acceptable insurance certificate prior to beginning the work.

(End of clause)

Prohibition of All Terrain Vehicles (ATVs) (Jul 1996)

The contractor is prohibited from utilizing All-Terrain Vehicles (ATV)s on National Park Service lands. ATV is defined as: A motorized off-highway vehicle (OHV) traveling on four or more low-pressure tires, having a seat to be straddled by the operator and a handlebar for steering control.

Use of Utility Terrain Vehicles (UTVs) are permitted. UTV (also called a side-by-side) is defined as: A motorized OHV having four or more low pressure tires, designed with side-by-side seats, seatbelts, steering wheel, and optional cab, brush cage, or ROPS.

(End of clause)

IX. ANY OTHER PERTINENT INFORMATION

Contract Administration Data

Cole Johnson
Contracting Officer
National Park Service
Department of the Interior
Cole_Johsnon@ios.doi.gov

LIST OF ATTACHMENTS: (please view and download all applicable attachments from https://www.sam.gov)

1. Statement of Work
2. SCA Wage Determination
3. Q&A Document
4. Monthly Price Schedule
5. Limitations On Subcontracting WS